

File No.: EXP202209676

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on August 21, 2022. The complaint is directed against ISA MADRID SERVICIOS, S.L. with NIF B16914210 (hereinafter, the respondent). The reasons for the complaint are as follows: "the respondent is responsible for a hotel establishment located at Calle ***DIRECCIÓN.1, which has a video surveillance camera at the entrance to the portal where it is located that, due to its location and orientation, is capable of capturing the public road" (page no. 1).

It provides images of the camera's location (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on 09/16/22, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: On 10/21/22, a letter was received in this Agency from the initially named respondent – Ms. B.B.B. – indicating that the property where the cameras are installed has been transferred by sale to the entity Zalima Asesores S.L., providing a partial copy of the sales contract between the parties.

FOURTH: On November 21, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question within the framework of File EXP202209676, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

The background information recorded in the information systems is as follows:

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In the framework of procedure AT/03940/2022, dated September 16, 2022, the AEPD, by virtue of Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights, forwards the complaint to Ms. B.B.B., a natural person who is listed as responsible for the data processing in the legal notice of the website of the (...) complained entity. The postal notification is unsuccessful, so it is reiterated by post on October 10, 2022.

This person sends their allegations to this Agency on October 21, 2022, stating that the property no longer belongs to B.B.B. since June 25, 2020, the date on which it was sold to ZALIMA ASESORES S.L. (hereinafter ZALIMA), and attaching the first four pages of the deed of sale where the buyer, seller, and identification of the property located at Calle ***DIRECCIÓN.1 are listed.

On November 16, 2022, and within the framework of procedure AT/03940/2022, the AEPD forwards the complaint to ZALIMA, which, on November 18, 2022, sends the following information and statements to this Agency:

- That ZALIMA is only the owner of the properties located on the floor (...) of Calle ***DIRECCIÓN.1 and has not installed any video surveillance cameras either inside or outside those properties.
- That the aforementioned properties are leased to the company ISA MADRID, with CIF number B-16914210, located at Calle ***DIRECCIÓN.1, ZALIMA provides a lease contract dated October 1,

2021.

- That the tenant ISA MADRID has never notified them that it has installed video surveillance cameras.
- ZALIMA provides four email addresses of the tenant company ISA MADRID.

On November 21, 2022, in procedure AT/03940/2022, the Spanish Agency for Data Protection agreed to carry out the present investigative actions regarding the installation of a video surveillance camera capable of capturing the public road.

INVESTIGATED ENTITIES

During the present actions, the following entities have been investigated:

ISA MADRID SERVICIOS, S.L. with NIF B16914210 located at ***DIRECCIÓN.1

RESULT OF THE INVESTIGATIVE ACTIONS

On December 15, 2022, a request for information regarding the camera was sent to the respondent via electronic notification.

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Video surveillance capable of capturing public roads, but its notification is automatically rejected after the established deadline.

This request is reiterated via postal services on December 29, 2022.

This notification is recorded as Returned to Origin due to unknown recipient on January 13, 2023.

On March 28, 2023, it is confirmed that B.B.B. continues to appear in the legal notice on the website of (...) claimed as responsible for the processing of data collected through the aforementioned website (...).

A screenshot of the legal notice from the website is recorded in the SIGRID system as an associated object.

On March 28, 2023, the information request is sent again to the claimed party via electronic notification, simultaneously sending an informative email of this notification to the four email addresses provided by ZALIMA.

An acknowledgment of the informative email is recorded in the SIGRID system, as well as the messages confirming correct delivery of this email to those addresses.

On the same date, the notification is made available through the Electronic Notification Service, which records Automatic Rejection Date: April 8, 2023.

A request was made to the Planning and Institutional Relations Service of the State Agency for Tax Administration (hereinafter, AEAT) to confirm the tax address of ISA MADRID, and on March 30, 2023, a response is received from AEAT, providing the current tax address (C/ ***ADDRESS.1), which matches the address specified in AXESOR and to which the postal notification that is recorded as Returned to Origin due to unknown recipient was sent.

CONCLUSIONS

Claim filed against a (...) for having a video surveillance camera capable of capturing public roads.

The individual listed as responsible for data processing in the legal notice on the website of (...) claimed indicates that the property was sold.

The new owners have leased the properties to the company ISA MADRID SERVICIOS, S.L., whose registered office is located in the same building.

Information from the video surveillance camera has not been obtained after several notification attempts to said company:

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.- Request with notification sent via the Electronic Notification Service, dated December 15, 2022, which has an automatic rejection date of December 26, 2022.

.- Reiteration via postal services, with this postal notification returned to origin due to Unknown on January 13, 2023.

.- Request with notification sent via the Electronic Notification Service, dated March 28, 2023, simultaneously sending an informative email of this notification to the four email addresses provided in the transfer. Automatic rejection date is recorded as April 8, 2023.

It has been confirmed that the tax address of ISA MADRID matches the address to which the postal notification recorded as Returned to Origin due to unknown recipient was sent.

It has been evidenced that the individual, previous owner of the properties, continues to be listed as responsible for data processing in the legal notice on the website of (...) claimed.

SIXTH: On July 10, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the claimed party for the alleged infringement of Article 5.1 c) and 13 of the GDPR, classified under Article 83.5 of the GDPR.

SEVENTH: Upon consulting the database of this Agency, the Agreement to Initiate is published, after the postal notification was unsuccessful in the B.O.E dated 08/17/23.

EIGHTH: The aforementioned initiation agreement has been notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the deadline granted for the submission of allegations has passed, it has been confirmed that no allegations have been received from the claimed party.

Article 64.2.f) of the LPACAP - a provision of which the claimed party was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the claimed party, and the sanction that could be imposed.

Therefore, considering that the claimed party has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in the present procedure,

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PROVEN FACTS

First. The facts arise from the claim dated 21/08/22, which states the following:

“the claimed party is responsible for a hotel establishment located at Calle ***DIRECCIÓN.1, which has a video surveillance camera at the entrance to the portal where it is located (...) which, due to its location and orientation, is capable of capturing the public road” (folio no. 1).

Second. It is evidenced that the main responsible entity for the installation of the video surveillance system is Isa Madrid Servicios S.L.

Third. It is evidenced that there is a camera in the access area to the property, processing data from an indeterminate number of owners and tenants, as well as affecting part of the public space due to its orientation.

Fourth. It is evidenced that the system is not properly signposted indicating that it is a .

Fifth. It is evidenced that the tax address registered in the AET system is ***DIRECCIÓN.1.

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LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, transposing European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registry actions; and which amends Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials, the procedural timeline established in Article 64.2 “in fine” is applied to the present procedure.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived.

II

In this case, the claim dated 21/08/22 is examined, which states the following fact:

“presence of a video surveillance camera on the façade of (...) and they use it to record access to the portal” (folio no. 1).

Article 5.1 c) GDPR provides the following: Personal data shall be: “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as controlling areas of transit without justified cause.

Moreover, such devices cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps.

The installation of video cameras is subject to an authorization regime, which will be granted, if applicable, following a report from a collegiate body presided over by a Magistrate, in which members dependent on the authorizing Administration do not constitute a majority—Article 3 LO 4/1997, August 4.

It is worth noting that even in the case of a “dummy” camera, it must be preferably oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who feel intimidated by it under the belief of being subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or the transit of third parties, outside the cases permitted by the regulations.

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The purpose of this type of devices must be the security of the property and its inhabitants, avoiding the infringement of third-party rights that may be intimidated by them.

The cameras must be limited to the protection of the property owned by the holder in such a way that they do not affect the areas of third parties who may be intimidated by them, as they affect their free transit area.

III

In accordance with the "evidence" available in this sanctioning procedure, it is considered that the complained party has a video surveillance camera(s) that is affecting the processing of third-party data without justified cause.

The main documentary evidence provided by the complainant (Doc. 1 Annex I) confirms the presence of a camera on the exterior side of the access door, which, according to its angle, allows for a wide capture of public areas.

The known facts constitute an infringement attributable to the complained party for violating the content of Article 5.1 c) of the GDPR.

Article 72, paragraph 1, letter a) establishes a statute of limitations of three years for "infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

IV

The described facts determine that the complained party has not placed an informative sign in a visible area indicating that it is a "video-monitored" area.

Article 22, paragraph 4 of the LOPDGDD states: "The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An internet connection code or address to this information may also be included in the informative device."

The previously described facts imply an infringement of the content of Article 13 of the GDPR, as there is a lack of informative sign(s) with an effective address to which one could direct inquiries or indicate, where applicable, the main controller of the data processing.

Article 13 of the GDPR "Information to be provided when personal data are obtained from the data subject"

1. When personal data relating to a data subject are obtained from that data subject, the controller shall provide all the information indicated below at the time of obtaining such data: a) the identity and contact details of the controller and, where applicable, of its representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72, paragraph 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements "shall prescribe after three years" and in particular the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

V

Article 83.5 of the GDPR states the following: "Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to up to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...).

b) The rights of data subjects under Articles 12 to 22 (...).

In motivating the sanction, the poor orientation of the installed device is taken into account, aimed at controlling access to the property, processing an indeterminate number of data associated with identified or identifiable natural persons, as well as the absence of any informative sign indicating that it is a video-monitored area, which justifies a negligent conduct sanction quantified at the amount of €900 (€600 + €300), an infringement situated at the lower scale for this type of behavior.

VI

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them correspond to the sanctioned party, as it is the data controller who

fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to open a further sanctioning administrative procedure.

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The reason(s) for the presence of the external camera must be explained by providing a screenshot with the date and time of what is captured by the camera(s), as well as proving that they comply with current legality, providing all necessary documentation for this, including the placement of an informative sign in the main access area indicating that it is a .

Therefore, in accordance with the applicable legislation and considering the criteria for the graduation of the sanctions whose existence has been proven,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on the entity ISA MADRID SERVICIOS, S.L., with NIF B16914210, a fine of €900 (€600 + €300) for an infringement of Article 5.1 c) and 13 of the GDPR, classified under Article 83.5 a) and b) of the GDPR.

SECOND: TO ORDER ISA MADRID SERVICIOS, S.L., with NIF B16914210, to comply with the following measures within 15 business days, in accordance with Article 58.2.d) of the GDPR:

- Removal and/or reorientation of the access camera to the property, so that it does not capture public thoroughfare or does so only in the minimum necessary portion.
- Placement of an informative sign in a visible area indicating that it is a video-surveilled area, as well as proving the availability of a form for affected individuals, either in physical form or on the corresponding website (downloadable for potential affected individuals).
- Provision of all necessary documentation proving that the installation has legally backed authorizations, indicating the purpose of their presence.

THIRD: NOTIFY this resolution to the entity ISA MADRID SERVICIOS, S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

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Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the

next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be suspended provisionally if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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